

23STCV01348 23STCV01348

County: los-angeles

Division: Civil Law and Motion

Department: 617

Hearing date: 2026-09-15

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Case Number: 23STCV01348 Hearing Date: September 15, 2026 Dept: 617

Dept. 617

Date: 9-15-26

Case #: 23STCV01348

Trial Date: None Set

LEAVE TO AMEND

MOVING PARTY: Plaintiff, Christopher L. Boggs

RESPONDING PARTY: Defendants, Cetera Financial Group, Inc. and First Allied Securities, Inc.

RELIEF REQUESTED

Motion for Leave to File First Amended Complaint

SUMMARY OF ACTION

Plaintiff Christopher L. Boggs sued Defendants Cetera Financial Group, Inc. and First Allied Securities, Inc. seeking a judicial declaration that enforcement of four promissory notes he signed was barred by the statute of limitations. Defendants then filed a cross-complaint to collect the balance outstanding on the notes. Defendants also assert a claim for breach of a settlement agreement connected to the notes. The Court later granted Defendants' motion for judgment on the pleadings as to Plaintiff's complaint, holding that Plaintiff was not entitled to declaratory or injunctive relief because the statute of limitations for Defendants' claims was tolled.

RULING: Denied.

Plaintiff moves for leave to file a First Amended Complaint asserting 6 causes of action.[1] He argues that leave should be granted because the proposed claims are based on the same facts put in issue by the affirmative defenses raised in his answer to Defendants' cross-complaint. Defendants oppose the motion, contending that the amended claims are futile, Plaintiff's thirty-month delay in filing the motion prejudices them, and no operative complaint exists. Because there is no operative complaint that Plaintiff can amend, his motion is denied.

A motion for leave to amend must comply with the requirements set forth in California Rules of Court, rule 3.1324, which states as follows:

(a) Contents of motion

A motion to amend a pleading before trial must:

(1) Include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments;

(2) State what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and

(3) State what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located.

(b) Supporting declaration

A separate declaration must accompany the motion and must specify:

(1) The effect of the amendment;

(2) Why the amendment is necessary and proper;

(3) When the facts giving rise to the amended allegations were discovered; and

(4) The reasons why the request for amendment was not made

earlier.

Dilatory delays and prejudice to the opposing parties is a valid ground for denial. (*Hirsa v. Superior Court* (1981) 118 Cal.App.3d 486, 490.) Prejudice exists where the amendment would require delaying the trial, resulting in loss of critical evidence, or added costs of preparation such as an increased burden of discovery. (*Magpali v. Farmers Group, Inc.* (1996) 48 Cal.App.4th 471, 486-88.)

Leave to amend is generally liberally granted. (Code Civ. Proc., § 473, subd. (a); *Mesler v. Bragg Management Co.* (1985) 39 Cal.3d 290, 296.) The Court will not generally consider the validity of the proposed amended pleading in ruling on a motion for leave, instead deferring such determinations for a demurrer or motion to strike, unless the proposed amendment fails to state a valid claim as a matter of law. (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal. App.3d 1045, 1048; *California*

Casualty Gen. Ins. Co. v. Superior Court (1985) 173 Cal.App.3d 274, 280-81 disapproved of on other grounds by Kransco v. American Empire Surplus Lines Ins. Co. (2000) 23 Cal.4th 390.)

Plaintiff's motion must be denied because there is no operative complaint for Plaintiff to amend after the Court granted Defendants' motion for judgment on the pleadings on September 21, 2023. That ruling did not grant Plaintiff leave to amend his complaint. Plaintiff cannot use his reply to transform his motion to one for leave to file a compulsory cross-complaint under Code of Civil Procedure section 426.50. (Maleti v. Wickers (2022) 82 Cal.App.5th 181, 227-28.) The motion for leave is therefore denied.

The instant ruling in no way bars Plaintiff from seeking leave to file a compulsory cross-complaint.

Plaintiff to give notice.

[1] In his reply, Plaintiff withdrew the seventh and eighth proposed causes of action for declaratory judgment and injunctive relief. [Reply at p. 2.]

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Date: None Set

MOTION TO DISMISS

MOVING

PARTY: Plaintiff, Christopher L. Boggs

RESPONDING

PARTY: Defendants, Cetera Financial Group, Inc. and First Allied Securities, Inc.

RELIEF

REQUESTED

Motion

to Dismiss Cross-Claims

SUMMARY

OF ACTION

Plaintiff

Christopher L. Boggs sued Defendants Cetera Financial Group, Inc. and First

Allied Securities, Inc. seeking a judicial declaration that enforcement of four

promissory notes he signed was barred by the statute of limitations. Defendants

then filed a cross-complaint to collect the balance outstanding on the notes.

Defendants also assert a claim for breach of a settlement agreement connected

to the notes. The Court later granted Defendants' motion for judgment on the

pleadings as to Plaintiff's complaint, holding that Plaintiff was not entitled

to declaratory or injunctive relief because the statute of limitations for

Defendants' claims was tolled.

RULING: Denied.

Request

for Judicial Notice: Granted.

The

Court takes judicial notice of the existence of the Financial Industry

Regulatory Authority's Letter of Acceptance, Waiver and Consent. (Evid. Code, §

452, subd. (h).)

Plaintiff

moves to dismiss Defendants' cross-claims, arguing that the claims are subject

to arbitration and thus not properly before the Court. Defendants oppose the

motion, contending that there is no statutory basis for the motion, Plaintiff

waived any right to arbitrate, the Cetera notes require a judicial forum, and that

dismissing the note claims would only fragment the case as the breach of

settlement agreement claim would remain. Because the settlement agreement claim

is not subject to arbitration, Plaintiff's motion is denied.

"[W]here

the only issue litigated is covered by the arbitration clause, and where

plaintiff has not first pursued or attempted to pursue his arbitration remedy,

it should be held that (1) plaintiff has impliedly waived his right to

arbitrate, such that defendant could elect to submit the matter to the

jurisdiction of the court; (2) defendant may also elect to demur or move for

summary judgment on the ground that the plaintiff has failed to exhaust

arbitration remedies; and (3) defendant may also elect to move for a stay of

proceedings pending arbitration if defendant also moves to compel arbitration."

(Charles J. Rounds Co. v. Joint Council of Teamsters No. 42 (1971) 4

Cal.3d 888, 899.) But “[w]here plaintiff has attempted to exhaust its

arbitration remedy or raises issues not susceptible to arbitration or not

covered by the arbitration agreement, defendant may not merely assert failure

to arbitrate an issue as an affirmative defense; a stay rather than dismissal

of the suit is then proper. Defendant must therefore demand arbitration if it

seeks such a stay.” (Id. at p. 899.)

Even

treating Plaintiff’s motion as one for judgment on the pleadings and assuming

that the Cetera notes are subject to arbitration, the motion to dismiss must be

denied because the breach of settlement agreement claim is not subject to arbitration.[1]

Thus, Plaintiff may only seek a stay of the action through a motion to compel

arbitration. The motion is therefore denied.

Plaintiff

to give notice.

[1] The

Court acknowledges that the settlement agreement provides that “Boggs agrees

that FINRA shall have jurisdiction relating to any action arising out of a

breach of this Agreement.” [Cross-Complaint ¶ 2, Ex. 3.] That provision,

however, does not make arbitration of the settlement dispute mandatory. In any

event, Plaintiff does not move to dismiss the settlement agreement claim.